

COMMITTEE ON GOVERNMENT
SENATE AMENDMENTS TO S.B. 1435
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 15-120.03, Arizona Revised Statutes, is amended
3 to read:

4 15-120.03. Sexually explicit materials; prohibition;
5 exemptions; violation; classification;
6 acknowledgement; definition

7 A. Except as prescribed in section 15-711, a public school in this
8 state may not refer students to or use any sexually explicit material in
9 any manner.

10 B. Materials may be exempted from the provisions of subsection A OF
11 THIS SECTION if all of the following requirements are met:

12 1. The exempted material possesses serious educational value for
13 minors or possesses serious literary, artistic, political or scientific
14 value.

15 2. The public school requires written parental consent before the
16 public school refers a student to or uses the exempted material. The
17 public school shall require parental consent on a per-material basis.

18 3. The public school provides students for whom parental consent is
19 not secured under paragraph 2 of this subsection with an alternative
20 assignment that does not contain sexually explicit material.

21 C. AN EMPLOYEE OR INDEPENDENT CONTRACTOR OF A PUBLIC SCHOOL WHO
22 ACTING WITH CRIMINAL NEGLIGENCE VIOLATES THIS SECTION IS GUILTY OF A
23 CLASS 5 FELONY.

24 [D. EACH PUBLIC SCHOOL IN THIS STATE SHALL REQUIRE ANY INDIVIDUAL
25 WHO IS HIRED AS AN EMPLOYEE OR INDEPENDENT CONTRACTOR OF THE PUBLIC SCHOOL
26 ON OR AFTER THE EFFECTIVE DATE OF THIS AMENDMENT TO THIS SECTION TO SIGN A
27 FORM ACKNOWLEDGING THAT THE INDIVIDUAL HAS READ THIS SECTION ON THE DATE
28 THAT THE INDIVIDUAL IS HIRED.]

1 ~~[D.]~~ [E.] For the purposes of this section, "sexually explicit
2 materials" includes textual, visual or audio materials or materials
3 accessed via any other medium that depict any of the following:
4 1. Sexual conduct. For the purposes of this paragraph, "sexual
5 conduct" means acts of masturbation, sexual intercourse or physical
6 contact with a person's clothed or unclothed genitals, pubic area,
7 buttocks or, if such person is a female, breast.
8 2. Sexual excitement. For the purposes of this paragraph, "sexual
9 excitement" means the condition of human male or female genitals when in a
10 state of sexual stimulation or arousal.
11 3. Ultimate sexual acts. For the purposes of this paragraph,
12 "ultimate sexual acts" means sexual intercourse, vaginal or anal,
13 fellatio, cunnilingus, bestiality or sodomy. [A sexual act is simulated
14 when it depicts explicit sexual activity that gives the appearance of
15 consummation of ultimate sexual acts.]
16 Sec. 2. Heading changes
17 A. The chapter heading of title 34, chapter 5, Arizona Revised
18 Statutes, is changed from "COMPUTER ACCESS" to "PUBLIC ACCESS TO COMPUTERS
19 AND LIBRARIES".
20 B. The article heading of title 34, chapter 5, article 1, Arizona
21 Revised Statutes, is changed from "ACCESS BY MINORS" to "COMPUTER ACCESS
22 BY MINORS".
23 Sec. 3. Title 34, chapter 5, Arizona Revised Statutes, is amended
24 by adding article 2, to read:
25 ARTICLE 2. LIBRARY ACCESS BY MINORS
26 34-521. Library access; sexually explicit materials;
27 prohibition; violation; classification;
28 acknowledgement; definitions
29 A. AN EMPLOYEE OR INDEPENDENT CONTRACTOR OF A PUBLIC LIBRARY IN
30 THIS STATE MAY NOT REFER AN UNEMANCIPATED MINOR TO ANY SEXUALLY EXPLICIT
31 MATERIAL IN ANY MANNER.
32 B. AN EMPLOYEE OR INDEPENDENT CONTRACTOR OF A PUBLIC LIBRARY IN
33 THIS STATE MAY NOT FACILITATE AN UNEMANCIPATED MINOR'S ACCESS TO ANY
34 SEXUALLY EXPLICIT MATERIAL IN ANY MANNER.
35 C. AN EMPLOYEE OR INDEPENDENT CONTRACTOR OF A PUBLIC LIBRARY WHO
36 ACTING WITH CRIMINAL NEGLIGENCE VIOLATES THIS SECTION IS GUILTY OF A CLASS
37 5 FELONY.
38 [D. EACH PUBLIC LIBRARY IN THIS STATE SHALL REQUIRE ANY INDIVIDUAL
39 WHO IS HIRED ON OR AFTER THE EFFECTIVE DATE OF THIS SECTION TO SIGN A FORM
40 ACKNOWLEDGING THAT THE INDIVIDUAL HAS READ THIS SECTION ON THE DATE THAT
41 THE INDIVIDUAL IS HIRED.]
42 ~~[D.]~~ [E.] FOR THE PURPOSES OF THIS SECTION:
43 1. "PUBLIC LIBRARY":
44 (a) MEANS ANY LIBRARY THAT IS OPEN TO MEMBERS OF THE PUBLIC AND
45 THAT IS SUPPORTED, IN WHOLE OR IN PART, BY MONIES DISTRIBUTED BY THIS
46 STATE OR ANY POLITICAL SUBDIVISION OF THIS STATE.
47 (b) INCLUDES ALL OF THE FOLLOWING:

1 (i) A FREE PUBLIC LIBRARY OF A CITY OR TOWN AS PRESCRIBED BY TITLE
2 9, CHAPTER 4, ARTICLE 2.

3 (ii) A COUNTY FREE LIBRARY AS PRESCRIBED BY TITLE 11, CHAPTER 7,
4 ARTICLE 1.

5 (iii) THE STATE LIBRARY AS PRESCRIBED BY TITLE 41, CHAPTER 1,
6 ARTICLE 2.1.

7 2. "SEXUALLY EXPLICIT MATERIALS" INCLUDES TEXTUAL, VISUAL OR AUDIO
8 MATERIALS OR MATERIALS ACCESSED VIA ANY OTHER MEDIUM THAT DEPICT ANY OF
9 THE FOLLOWING:

10 (a) SEXUAL CONDUCT. FOR THE PURPOSES OF THIS SUBDIVISION, "SEXUAL
11 CONDUCT" MEANS ACTS OF MASTURBATION, SEXUAL INTERCOURSE OR PHYSICAL
12 CONTACT WITH A PERSON'S CLOTHED OR UNCLOTHED GENITALS, PUBIC AREA,
13 BUTTOCKS OR, IF THE PERSON IS A FEMALE, BREAST.

14 (b) SEXUAL EXCITEMENT. FOR THE PURPOSES OF THIS SUBDIVISION,
15 "SEXUAL EXCITEMENT" MEANS THE CONDITION OF HUMAN MALE OR FEMALE GENITALS
16 WHEN IN A STATE OF SEXUAL STIMULATION OR AROUSAL.

17 (c) ULTIMATE SEXUAL ACTS. FOR THE PURPOSES OF THIS SUBDIVISION,
18 "ULTIMATE SEXUAL ACTS" MEANS SEXUAL INTERCOURSE, VAGINAL OR ANAL,
19 FELLATIO, CUNNILINGUS, BESTIALITY OR SODOMY.

20 <<Sec. 4. Implementation

21 [A. Each public school in this state shall require each individual
22 who is employed as an employee or independent contractor of the public
23 school on the effective date of this act to sign a form acknowledging that
24 the individual has read section 15-120.03, Arizona Revised Statutes, as
25 amended by this act.

26 B. Each public library in this state shall require each individual
27 who is employed by the public library on the effective date of this act to
28 sign a form acknowledging that the individual has read section 34-521,
29 Arizona Revised Statutes, as added by this act.]]>>

30 Enroll and engross to conform

31 Amend title to conform

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